

**SUPERIOR COURT OF CALIFORNIA  
COUNTY OF VENTURA**

**Tentative Ruling**

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**2025CUP0045559: HANNAH KAYLEY LESSER, AN INDIVIDUAL vs UNITED TRACK CLUB, INC., A CALIFORNIA NON-PROFIT CORPORATION, et al.**

**07/21/2026 in Department 43**

**Demurrer**

The morning calendar in courtroom 43 will normally begin at 8:45. Please arrive for your hearing no later than 8:30 a.m. The door will be opened before the calendar is called.

The Court allows remote appearances by Zoom. Refer to the Courtroom 43 webpage for more information about remote appearances. For Zoom appearances, all counsel appearing by Zoom must register no later than 3:00 p.m. the court day before the hearing. If appearing by Zoom, log into the hearing no later than 8:30 a.m. The Court will transfer you to the meeting room when the calendar begins. Additional instructions can be found on the Court website. When you log in to Zoom, be sure that your name and the case name are used as your Zoom name.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling you can fax notice to Judge Coats's secretary, Ms. Brantner at 805-477-8790, stating that you submit on the tentative. Or you may email Courtroom43@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending a fax or email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

**Motion:** Grace Church and School Demurrer to Complaint

**Tentative Ruling:** The Demurrer to Complaint of Defendant Grace Church and School TO the second cause of action for premises liability is OVERRULED. Plaintiff has pled that the Defendants (Grace Church and School by amendment as DOE 1 and DOE 2) controlled the Subject Premises at which Plaintiff's alleged injury occurred. (Complaint at ¶5 and ¶20.) (*Alcaraz v. Vece* (1997) 14 Cal.4th 1149, 1158, "This court recognized in *Johnston v. De La Guerra Properties, Inc.* (1946) 28 Cal. 2d 394 [170 P.2d 5] that a defendant who lacks title to property still may be liable for an injury caused by a dangerous condition on that property if the defendant exercises control over the property.")

The court grants judicial notice of the court record (January 28, 2026, Doe Amendment) (Ev. Code, §452(c)) and the statements that Oak Park High School is a public institution, and Oak Park Unified School District is a public entity. (Ev. Code, §452(g).) However, this evidence does not negate the allegation in the complaint that Defendants (DOES 1 and 2) controlled the premises

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(Complaint at ¶5 and ¶20). As stated above, control may provide a basis for liability distinct from ownership.

Defendants are granted leave to file an answer to the complaint on or before August 8, 2026.

Plaintiff is ordered to serve notice of the Court's ruling.